

14	Temple Hills Land Company, LLC vs. Floraville, LLC 2023-01360506	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication 3. Motion for Summary Judgment and/or Adjudication There are 3 motions for summary judgment pending before the Court, seeking adjudication of the same issues with the same evidence and arguments presented for each. Additionally, there are numerous objections submitted as to evidence in support of the Motions. All objections shall be addressed here. Temple Hills’s objection to Boss’s Declaration generally and to paragraphs 6-18 are overruled. Boss has demonstrated some special skill or knowledge through his own testimony in his declaration. Boss’s declaration demonstrates he has sufficient skill and knowledge regarding title and title searches. Boss’s declaration provides each deed or document relied upon by each paragraph. (Boss Decl., ¶¶ 7-18.) An expert may provide expert opinion on the ultimate issue “which the court may or may not accept.” (Wells Truckways v. Cebrian (1954) 122 Cal.App.2d 666, 674.) Additionally, an expert may rely on otherwise inadmissible evidence to form an opinion. Thus, Temple Hills’s objections to Boss’s declaration are overruled. Temple Hills’s objections to the tax records are not dispositive to the case and, thus, the Court declines to rule on them. Floraville’s objections to Exhibits 14 A-h are overruled. To the extent any of the exhibits are not referenced in the separate statements, the Court exercises its discretion to consider the evidence. (San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th 308, 315.) Documents received through discovery can be authenticated by an attorney declaration if there is sufficient evidence to support the declaration. Counsel has provided sufficient evidence the exhibits produced are the copies of the documents provided in response to a business records subpoena. (Gleason Decl., ¶ 8.) Finally, the records are excepted from the hearsay rule as records kept in the normal course of business because they are the records normally kept in regards to a city council appeal. Floraville’s remaining objections to the declarations of Schroeder, Gleason, Dornin, and Cantrell and the remaining requests for
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		judicial notice are not dispositive to the motions and, thus, the Court declines to rule on them. Temple Hills's requests for judicial notice of recorded deeds and conveyances are granted. The Court declines to admit records related to the city council appeal because they are more appropriately admitted through Gleason's declaration as documents obtained through discovery. <i>Floraville's MSJ - Complaint</i> Floraville first claims a prior judgment entered pursuant to a settlement between Gregg Juarez, the prior owner of the Temple Hills property, and David and Ellen Edington, the prior owners of the Floraville property, extinguished all easement rights of the Temple Hills property as the dominant estate. In opposition, Temple Hills argues the Juarez judgment only addressed a separate easement. In reply, Floraville argues the judgment gave the Edingtons fee title to the Disputed Area including the at issue easement. However, the judgment provides "the Edingtons own fee title to the following real property, free of any right, title or interest of Juarez: [¶] That portion of that certain easement for road purposes ... in Book 3231, Page 227" (Floraville, Ex. 23.) The judgment also provides it "does not affect any and all ownership and easement rights Juarez has to any other real property" (Floraville, Ex. 23.) Floraville only offers a declaration from its expert, Boss. Boss does not explain how the judgment could be construed to concern real property beyond that which it is clearly limited to in the plain language of the judgment. Further, Floraville provides no evidence the property in Book 3231, Page 227 and the property at issue in Book 3235, Page 43 are the same property. Therefore, summary adjudication is denied on this ground. "A servitude is extinguished: [¶] 1. By the vesting of the right to the servitude and the right to the servient tenement in the same person" (Civil Code, § 811.) Floraville has satisfied its burden of showing the Lowrie Properties had a unity of title of the Floraville property and APN 641-163-09. (Exs. 24-26 and 28.) Thus, the easement as to APN 641-163-09 was extinguished by merger when Lowrie Properties obtained unity of title of the two properties in 1956. Therefore, the burden shifts to
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	Temple Hills to prove there is an issue of material fact as to whether the easement was extinguished. Temple Hills has demonstrated an issue of material fact as to whether the grant deed from Lowrie to Wanda Kress meant to include the previously recorded easements. The grant deed from Laguna Oceanview Estates to Lowrie provides for the easement at issue in Parcel 5. (Ex. 26.) The grant deed to Kress provides it is “[s]ubject to covenants, conditions, reservations, restrictions and rights of way of record.” (Ex. 27.) It is unclear if this line means to include what would be an extinguished easement. Therefore, summary adjudication is denied on this ground. Finally, Floraville argues it adversely possessed the easement by maintaining a fence, gate, and landscaping coupled with nonuse by the easement holder. Floraville has not demonstrated it’s use interfered with the use of the easement or an appearance of permanency. Floraville has not demonstrated for the purposes of summary adjudication that the settlement in Juarez included the at issue easement or Floraville’s use by law interfered with the easement holder’s use. In seeking an appeal of a denial for a variance to keep the fence, Floraville stated the fence served as a safety feature to hikers because of the steep edge on the current access road. (TX, 6D.) Additionally, Floraville had an agreement with the Water District which it also extended to the city to remove the fence if there was “a problem for any reason.” (TX, 6D.) Thus, it is not beyond dispute whether Floraville intended its use of fencing and landscaping to exclude use by the easement holder for the purposes of summary adjudication. Therefore, summary adjudication should be denied on this ground. Floraville has failed to demonstrate it is entitled to summary adjudication as to either claim that Temple Hills is precluded by law as to its quiet title cause of action of the at issue easement or the declaratory relief cause of action. Tentative Ruling: Defendant/Cross-Complainant Floraville, LLC’s Motion for Summary Judgment on the Complaint, or in the alternative, summary adjudication is DENIED. <i>Floraville’s MSJ – Cross-Complaint</i>
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		Floraville’s own quiet title and declaratory relief causes of action fail for the same reasons as stated above. Floraville cannot establish for the purposes of summary judgment that there is no dispute of material fact that the easement was extinguished by a prior judgment, merger, or adverse possession. Tentative Ruling: Defendant/Cross-Complainant Floraville, LLC’s Motion for Summary Judgment on the Cross-Complaint, or in the alternative, summary adjudication is DENIED. <i>Temple Hill’s MSJ - Complaint</i> In order to prevail on its Motion, Temple Hills must prove there is no dispute of material fact as to its easement not being extinguished by a prior judgment, merger, or adverse possession. However, Temple Hills has failed to satisfy its initial burden of demonstrating there is no dispute as to whether Floraville adversely possessed the area including the easement. There is a dispute of material fact as to whether Floraville’s or its predecessor’s use of the property interfered with Temple Hills or its predecessor’s use of the easement or whether the use had an appearance of permanency. Thus, Temple Hills has not demonstrated it is entitled to prevail on its claims to quiet title to the easement or have the easement declared as valid. Accordingly, summary adjudication is not proper as to either of its causes of action. Tentative Ruling: Plaintiff/Cross-Defendant Temple Hills Land Company, LLC’s Motion for Summary Judgment on the Complaint, or in the alternative, summary adjudication is DENIED. Moving parties to give notice.
15	Peoples vs. Park Anaheim Healthcare, LLC 2023-01364852	Motion for Summary Judgment and/or Adjudication <i>O/C Notice of Settlement filed 04/30/26</i>